



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

April 2, 2015

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Maribel Cortes**
Tax Registry No. 917467
Police Service Area 1
Disciplinary Case Nos. 2010-3335 & 2012-7409

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on September 25, and 26, 2013, and on August 12, 2014 and was charged with the following:

DISCIPLINARY CASE NO. 2010-3335

1. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 2, 2010, was discourteous to New York City Police Sergeant Hameed Assaidi, tax # 926522, in that said police officer used profanity toward Sergeant Hameed Assaidi.

P.G. 203-09, Page 1, Paragraph 2

GENERAL REGULATIONS

2. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, was discourteous to Sergeant Richard Cohen, tax # 905584, in that said police officer after expressing her discontent to Sergeant Cohen regarding his checking on her while on her post, threatened to file an Equal Employment Opportunity complaint against the Sergeant.

P.G. 203-09, Page 1, Paragraph 2

GENERAL REGULATIONS

3. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer made a disparaging remark about Sergeant Hameed Assaidi to Sergeant Richard Cohen.

P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

4. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, did wrongfully divulge or discuss a confidential investigation, to wit: said Police Officer told Sergeant Richard Cohen about the existence of an Equal Employment Opportunity complaint she filed against Sergeant Hameed Assaidi.

P.G. 205-36, Page 6, Additional Data

**PERSONNEL MATTERS
EMPLOYMENT DISCRIMINATION**

DISCIPLINARY CASE NO. 2012-7409

1. Said Police Officer Maribel Cortes, assigned to the 47 Precinct, while off duty, on or about May 4, 2012, within the confines of the 47 Precinct Stationhouse, in Bronx County, was discourteous to New York City Police Sergeant Dowling by stating in sum and substance, "If you did tell her, that is a bitch move" and did further argue with Sergeant Dowling while pointing her finger in his face.

P.G. 203-09, Page 1, Paragraph 2

GENERAL REGULATIONS

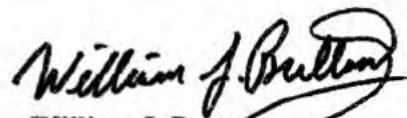
2. Said Police Officer Maribel Cortes, assigned to the 47 Precinct, while off duty, on or about May 4, 2012, within the confines of the 47 Precinct Stationhouse, in Bronx County, having been directed by New York City Police Sergeant Dowling to standby, did fail and neglect to comply with said order.

P.G. 203-03, Page 1, Paragraph 2

COMPLIANCE WITH ORDERS

In a Memorandum dated February 20, 2015, Assistant Deputy Commissioner Robert W. Vinal found the Respondent Guilty as charged of Specification No. 4, after having pleaded Guilty, and Guilty of Specification Nos. 1, 2, 3 in Disciplinary Case No. 2010-3335, and found the Respondent Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 2012-7409. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues in the various acts of misconduct for which the Respondent has been found Guilty and deem that a greater penalty is warranted. Therefore, the Respondent shall receive a penalty of thirty-one (31) suspension days previously served, fifteen (15) vacation days, and the imposition of one (1) year dismissal probation.



William J. Bratton
Police Commissioner



POLICE DEPARTMENT

February 20, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Maribel Cortes
Tax Registry No. 917467
Police Service Area 1
Disciplinary Case Nos. 2010-3335 & 2012-7409

The above-named member of the Department appeared before me on September 25, and 26, 2013, and on August 12, 2014,¹ charged with the following:

Disciplinary Case No. 2010-3335

1. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 2, 2010, was discourteous to New York City Police Sergeant Hameed Assaidi, tax # 926522, in that said police officer used profanity toward Sergeant Hameed Assaidi.

P.G. 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

2. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, was discourteous to Sergeant Richard Cohen, tax # 905584, in that said police officer after expressing her discontent to Sergeant Cohen regarding his checking on her while on her post, threatened to file an Equal Employment Opportunity complaint against the Sergeant.

P.G. 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

3. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer made a disparaging remark about Sergeant Hameed Assaidi to Sergeant Richard Cohen.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

¹ The delay between the second and third trial dates was caused by a number of factors including an illness suffered by Respondent and because her attorney needed time to recover from a surgical procedure. The trial record was held open until Aug. 22, 2014 for the submission of medical documents by Respondent.

4. Said Police Officer Maribel Cortes, while on duty and assigned to the 60 Precinct, on or about October 17, 2010, did wrongfully divulge or discuss a confidential investigation, to wit: said Police Officer told Sergeant Richard Cohen about the existence of an Equal Employment Opportunity complaint she filed against Sergeant Hameed Assaidi.

P.G. 205-36, Page 6, Additional Data – PERSONNEL MATTERS
EMPLOYMENT DISCRIMINATION

Disciplinary Case No. 2012-7409

1. Said Police Officer Maribel Cortes, assigned to the 47 Precinct, while off duty, on or about May 4, 2012, within the confines of the 47 Precinct Stationhouse, in Bronx County, was discourteous to New York City Police Sergeant Dowling by stating in sum and substance, “If you did tell her, that is a bitch move” and did further argue with Sergeant Dowling while pointing her finger in his face.

P.G. 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

2. Said Police Officer Maribel Cortes, assigned to the 47 Precinct, while off duty, on or about May 4, 2012, within the confines of the 47 Precinct Stationhouse, in Bronx County, having been directed by New York City Police Sergeant Dowling to standby, did fail and neglect to comply with said order.

P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS

The Department was represented by Michelle Alleyne, Esq., Department Advocate’s Office, and Respondent was represented by Lauriano Guzman, Jr., Esq.

Respondent entered a plea of guilty to Specification No. 4 of Disciplinary Case No. 2010-3335 and testified in mitigation of the penalty to be imposed for this misconduct.

Respondent entered a plea of not guilty to the remaining charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review.

DECISION

Disciplinary Case No. 2010-3335

Respondent is found Guilty of Specification Nos. 1, 2 and 3. Respondent, having pleaded guilty, is found Guilty of Specification No. 4.

Disciplinary Case No. 2012-7409

Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

This trial concerned three separate incidents. The testimony and other evidence presented at this trial regarding these three incidents will be summarized separately under the respective Case number and Specification Number(s).

Case No. 2010-3335, Specification No. 1

Introduction

It is not disputed that while she was on duty on October 1, 2010, Respondent, who was then assigned to the 60 Precinct, was assigned to a funeral detail and that she also performed patrol duties in a Radio Motor Patrol car (RMP). On October 2, 2010, although Respondent was scheduled to perform patrol duties in an RMP, after roll call she was post changed to perform her tour of duty on a foot post. Since Respondent

viewed her tour change to a foot post as a “punishment post,” she approached Sergeant Hameed Assaidi at the front desk and asked him why she was being put on a foot post.

The Department called Sergeant Hameed Assaidi as its sole witness. Respondent called Police Officers India Archie, Laurene Bove and Hugh Herbert, and Psychologist Anna Penque as witnesses and Respondent testified in her own behalf

Sergeant Hameed Assaidi

Assaidi testified that when Respondent asked him on October 2, 2010 who had re-assigned her to a foot post, he told her that the question of who had given her the assignment was irrelevant and that she needed to proceed to her post. Respondent then told him, “Fuck you, fuck you, you piece of shit! I know you are snitching to Lieutenant Anderson.” Other members of the service (MOS) were present when she said this. Assaidi warned Respondent that if she did not proceed to post she would be suspended. Assaidi notified the commanding officer (CO) about this incident.

On cross-examination, Assaidi agreed that he had worked with Respondent for over a year, that prior to October 2, 2010 he had never had any problem with her, and that he spoke loudly to her during this encounter which lasted between two and eight minutes. Assaidi confirmed that on October 1, 2010, he monitored radio dispatches and noticed that Respondent and her partner were not picking up any “jobs” while they were on patrol. He spoke to his lieutenant about this but he did not document it in his Activity Log. He did not recall addressing the matter directly with Respondent. He confirmed that Respondent sometimes was assigned as his driver. He denied that he ever made any sexual comments to her on those occasions.

On redirect examination, Assaidi explained that he had raised his voice during the encounter on October 2, 2010 because Respondent was shouting and not listening to him. She was standing six to eight feet away at the time.

On recross-examination, he stated that he did not document in his Activity Log the specific words Respondent used during the encounter. He agreed that his report to the lieutenant on October 1, 2010 that Respondent had failed to “answer jobs” made it likely that she would be assigned a foot post the next day.

Police Officer India Archie

Archie was Respondent’s partner during their tour on October 1, 2010. Because their presence at the funeral took up the bulk of their tour, they were out on patrol for only a couple of hours that day. Archie did not recall if they received any “jobs” over the radio. Had they received jobs, they would have responded. Upon returning to the station house, Assaidi called them to the radio room and asked them about their patrol activity. Archie and Respondent told Assaidi that they had spent most of their tour at the funeral. Assaidi responded that because they had not issued any summonses or engaged in any other patrol activity they would be assigned to foot posts the next day. Archie considered this a punishment assignment. She went upstairs to the locker room.

On cross-examination, Archie testified that she has known Respondent for more than ten years and that they are very good friends. On redirect examination, she testified that prior to October 2010, Respondent had told her that Assaidi had made sexual advances toward her.

Police Officer Laurene Bove

Bove recalled that she was assigned as Assaidi's driver for about ten tours of duty between 2008 and 2010. On one of those occasions, Assaidi made an inappropriate comment to her. Bove could not recall the specific words he used but the gist was that if she looked like another woman maybe she would have a boyfriend or a baby. The comment angered and embarrassed Bove.

On cross-examination, Bove confirmed that she was not present during the verbal exchange between Respondent and Assaidi on October 2, 2010.

Police Officer Hugh Herbert

Herbert testified that he was standing in the desk area when Respondent approached Assaidi on October 2, 2010. He heard their entire exchange and had an unobstructed view of what transpired. He described Respondent as tending to be on the loud side. Assaidi was also loud. He did not recall hearing Respondent use profanity. Although he could not recall what they said to each other, it seemed as if they were arguing. Respondent did not have to be escorted out of the station house and left on her own volition. The entire exchange lasted no more than 30 seconds.

On cross-examination, Herbert confirmed that other MOS were present in the area. And that their loud voices drew his attention. Though he did not recall hearing profanity, he could not say definitively whether or not profanity was used.

Psychologist Anna Penque

Penque, a licensed psychologist who has worked for the Department since February 2010, first interviewed Respondent in September 2011 after Respondent reported that for the past year she had been suffering symptoms of [REDACTED] related to job stress including [REDACTED]. Respondent reported that she had filed an EEO complaint against a sergeant for sexual harassment after he made inappropriate comments about her body and she had cursed at him. Penque placed Respondent on [REDACTED] which is continuing. [REDACTED]
[REDACTED]
[REDACTED]

Respondent

Respondent testified that she was assigned as Assaidi's driver on about one dozen tours of duty. On each occasion he asked her personal questions such as whether she had a boyfriend and whether she drank alcohol. These questions made her uncomfortable. He also made inappropriate comments about her body such as that she had a "nice behind" and a body like a mermaid. He told her that he was cheating on his wife and he often asked her to go out with him. The last time that she was assigned to drive Assaidi she told him that she was not interested in him and that she was sick of his comments. This took place two to three months prior to October 2, 2010.

On that day, when Assaidi asked Respondent and Archie why they had not issued any summonses the previous day, they explained that they had no activity because they

had been assigned to a funeral detail for most of their tour and had been on patrol for only a couple of hours. Respondent's assignment for October 2, 2010 was then changed from sector patrol in an RMP to a foot post.

Respondent testified that when she learned about this post change she asked Assaidi whether the platoon commander had made the decision to change her assignment or if he had made that decision on his own. She also asked what she did wrong to be put on a foot post, which she considered a punishment. At no point did she use profanity toward Assaidi. Her voice was raised, but only because Assaidi was yelling at her. The exchange lasted less than a minute and Respondent went to her post. She did not have to be escorted out of the command. As a result of this incident, she was penalized by having her tour changed from day tours to the third platoon.

Respondent has been under the care of a [REDACTED] for over a year. She has been diagnosed with [REDACTED]

[REDACTED] [REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED] cross-examination, Respondent confirmed that she believed Assaidi was penalizing her for being unresponsive to his unwanted advances. When she asked Assaidi who had changed her assignment, Assaidi yelled that he did not have to answer her question. Respondent conceded that she still does not know who changed her assignment to a foot post. Respondent filed an EEO complaint against Assaidi two days after this encounter. At her November 23, 2010, official Department interview, when

Respondent was asked, "Were you using profanity at all?" Respondent answered, "I don't recall."

Case No. 2010-3335, Specification Nos. 2 through 4

Introduction

It is not disputed that on October 17, 2010, Respondent was on duty, assigned to the 60 Precinct, assigned to a foot post in Brighton Beach, Brooklyn. When Respondent returned to the station house at 2000 hours to take her meal, she approached Sergeant Richard Cohen at the front desk to ask him why he had not "scratched" her Activity Log when he passed by her foot post. During her conversation with Cohen, Respondent told him that she had filed an EEO complaint against Assaidi.

The Department called Sergeant Richard Cohen as its sole witness. Respondent called retired Sergeant Glenn Amico and Sergeant Joseph Flynn as witnesses and testified in her own behalf.

Sergeant Richard Cohen

Cohen testified that on that day, he was patrol supervisor and Respondent was assigned a foot post. While they were both in the station house for meal, Respondent approached him and loudly stated that she "didn't come to the platoon to be harassed by [him] and that she is out on foot and [he] should scratch her book when she is ready to be scratched, not when [he's] ready." Respondent also told him that "Sergeant Assaidi was an idiot and that if [he] wanted to jump on [Assaidi's] bandwagon she would have no problem throwing an EEO [complaint] at [him] also." She proceeded to call Assaidi a

“fucking idiot” and a “dope” who did not know “what the fuck he was doing.” Though Cohen had previously seen Respondent on post, this was the first interaction that he had with her that day. There were other people in the area. The encounter lasted approximately five minutes. It ended when Cohen walked away. Cohen documented the encounter in his Activity Log. He also reported it to his commanding officer and integrity control officer. He had never before had an argument with Respondent. He had no prior knowledge of Respondent filing an EEO complaint against Assaidi.

On cross-examination, Cohen testified that Sergeant Glenn Amico was sitting next to Respondent during the encounter. Cohen and Amico never had a conversation about Respondent. Police Officer Joseph Flynn was ten to 15 feet away and Respondent spoke loud enough for Flynn to hear. Based on the encounter, Cohen issued Respondent a Command Discipline.

Sergeant Glenn Amico (retired)

Amico was a sergeant on October 17, 2010, when Cohen told him that Respondent had been off post the previous day. As her immediate supervisor, Amico spoke to Respondent about the matter after roll call. Respondent vehemently denied being off post and Amico suggested that she talk to Cohen directly about the situation.

Respondent approached Cohen later in the tour while they were both in the station house for meal. Amico was sitting in between them. He could not remember the specific words Respondent used with Cohen, but the gist of it was, “[Cohen] was mistaken about her not being on her foot post, and she was a little upset that he brought it up to her sergeant and she thought he was being unfair.” Respondent did not use profanity or

scream. Amico explained that had Respondent done either of those things, he would not have allowed it. He did not recall Respondent mentioning an EEO complaint. At no point did he see Respondent be discourteous. The conversation between Respondent and Cohen lasted a minute or two.

On cross-examination, Amico testified that he was desk officer on the day of the incident. Respondent spoke to Cohen in her regular tone of voice, which Amico described as deep and strong. Cohen did not reply to her comments. There were other members of the service present in the area.

On redirect examination, Amico testified that he did not recall Respondent saying anything regarding Cohen scratching her Activity Log.

Sergeant Joseph Flynn

Flynn worked with Respondent as a police officer. He was in the desk area when Respondent approached Cohen. Respondent spoke in her normal tone of voice, which Flynn described as loud. Respondent asked Cohen about scratching her Activity Log and mentioned filing an EEO complaint against Assaidi. Flynn did not recall her using profanity or threatening to file a complaint against Cohen. At no point did he hear her say that Assaidi was a "fucking idiot." The exchange lasted approximately three minutes. Flynn agreed that Respondent is someone who uses her hands to communicate.

On cross-examination, Flynn described Respondent as being upset. Respondent relayed to Cohen that she felt she was being treated unfairly. He could not recall the specifics of what Respondent said. In a November 15, 2010 official Department interview, however, he gave the following statement: "When Sergeant Cohen came in,

Police Officer Cortes asked him why [he drove] by her post and [did] not scratch her. She then went on to tell him that she didn't come to the 4:00 by 12:00 [tour] to be harassed and that she felt he was jumping on Assaidi's bandwagon." Flynn continued in his interview, "She also said that she already filed an EEO against Sergeant Assaidi and if [Cohen] would like she could easily add him on."

On redirect examination, Flynn testified that he would consider a foot post to be a punishment. He did not recall if Respondent was the only officer assigned to a foot post that day.

Respondent

Respondent testified that Assaidi and Cohen are friends. Amico, who was her immediate supervisor, told her that Cohen had complained about her not being on post and thought she was a bitch. Amico advised her to talk to Cohen in order to resolve the situation.

While on meal, Respondent approached Cohen in front of the desk. She asked Cohen why he complained about her not being on post since she was always on post. She also asked him why he did not scratch her Activity Log when he drove by. She had been assigned a foot post since the October 2 incident and was the only officer on a foot post that night. Respondent told Cohen one more thing: "I also told him that I had done an EEO on Sergeant Assaidi and that if he was jumping on [Assaidi's] bandwagon to retaliate on me, I was going to report him for retaliation." Respondent continued, "And I told him I didn't come to the 4:00 to 12:00 [tour] to be harassed, I wanted a clean start, and here you are . . . making false comments that I'm not on my post." It seemed to

Respondent that Cohen was retaliating against her for the EEO complaint she had made against Assaidi. She did not give any details to Cohen regarding the substance of the complaint, and it was not her intent to threaten Cohen with an EEO complaint of his own. At no point during the exchange did Respondent make disparaging remarks about Assaidi. She did not yell at Cohen.

On cross-examination, Respondent conceded that she was aware that pending EEO complaints are supposed to remain confidential. She did not use profanity in her conversation with Cohen. Respondent further claimed that OEEA's confidentiality procedures are routinely violated.

Case No. 2012-7409

Introduction

It is not disputed that on May 4, 2012, Respondent performed a tour of duty serving as the Telephone Switchboard Operator (TSO) at the 47 Precinct. During her tour, Sergeant Ebony Huntley approached and addressed Respondent regarding answering the TSO telephone. When Respondent was relieved from her TSO duties at the end of her tour by Police Officer Elizabeth Acevedo, Respondent told Acevedo what Huntley had told her regarding answering the TSO telephone.

After Respondent went end-of-tour, Huntley approached her and told Respondent that someone had just informed her that he had overheard Respondent talking about Huntley in a derogatory manner. Respondent then approached Dowling and asked him if he had told Huntley that she had been speaking about Huntley in a negative manner. Dowling told her that he did not have to answer her question.

The Department called Sergeants Ebony Huntley and Timothy Dowling and Lieutenant Roy Ulloa as witnesses. Respondent called Police Officer Elizabeth Acevedo as a witness and testified in her own behalf.

Sergeant Ebony Huntley

Huntley testified that while she was at the desk preparing the roll call, the TS phone was ringing and there were several people waiting for assistance. Respondent was looking at her cellphone. Huntley pointed out to Respondent that the TS phone was ringing, and Respondent replied that she heard the phone. Because Respondent continued to operate her cell phone, Huntley told her again that the TS phone was ringing. Respondent repeated that she heard the phone, and Huntley instructed her to answer it.

Respondent answered the phone. When the call ended, Respondent walked to the desk in an aggressive manner and told Huntley that she wanted to speak with her. Huntley told Respondent to stand by and assist the people who were waiting at the TS desk. Five to ten minutes later, Huntley and Respondent stepped outside together. Respondent told Huntley that she was having a difficult day. Huntley told her that she needed to put her cell phone away and answer the TS phone when it rang. Huntley went upstairs to the locker room.

While Huntley was changing, Sergeant Timothy Dowling called and asked what had happened with Respondent. Huntley told Dowling about having to speak with Respondent, and Dowling informed Huntley that Respondent was downstairs speaking in a "derogatory manner" in regards to the incident. As Huntley exited the locker room, she

ran into Respondent. She asked Respondent if they had “resolved the issue,” and Respondent replied affirmatively. She then related to Respondent that she had been informed about Respondent speaking derogatorily. Respondent was apologetic, and they parted ways amicably. Huntley had never before had a problem with Respondent.

On cross-examination, Huntley testified that, according to Dowling, while she was changing in the locker room Respondent was downstairs saying something to the effect, of “Sergeant Huntley can’t tell me what the fuck to do, that bitch doesn’t know who she’s messing with.” In an official Department interview about the incident, Huntley told investigators about Respondent speaking in a derogatory manner, but she did not get specific about the language Respondent used. Huntley subsequently learned from Dowling about an altercation he had with Respondent later in the day.

Sergeant Timothy Dowling

Dowling testified that Huntley informed him of her talk with Respondent about TSO duties. Approximately ten minutes later, he observed Respondent at the TS desk talking with Acevedo. Dowling was standing approximately 15 feet away and heard Respondent speak negatively about Huntley. Dowling proceeded to call Huntley to tell her what he overheard.

While Dowling was on the back steps of the station house talking with Lieutenant Roy Uilola, Respondent approached and said she needed to speak with him. This was the first interaction he ever had with Respondent. Dowling asked her to wait a minute. She stepped back and waited about two minutes. When Dowling was finished with the lieutenant, Respondent came within 12 to 18 inches of his face and asked if he had

spoken with Huntley. Dowling responded that his conversations with another supervisor were none of her business. Respondent replied by saying something to the effect of, "That's a bitch move." Dowling reminded Respondent that she was talking to a supervisor, and she replied, "I don't care, that's what bitches do." Dowling told Respondent to stand by, and she replied that she had already signed out and that she was leaving. When Dowling made it clear that he was giving her a direct order to stand by, she replied, "Don't worry about it, I'll handle you through my own channels." At one point during the exchange, Respondent had her hand in an upward direction and was kind of pointing at Dowling. Respondent proceeded to leave, and Dowling went inside to notify his supervisors. He had no further interaction with Respondent that day.

On cross-examination, Dowling testified that Respondent's conversation with Acevedo lasted maybe 30 seconds. A part of that conversation was in Spanish. Dowling does not understand Spanish, but he heard Huntley's name. He did not know exactly what Respondent was saying about Huntley, but based on Respondent's body language and mannerisms he assumed that she was speaking negatively. Respondent seemed agitated. Dowling did not document the incident in his Activity Log.

Lieutenant Roy Ulloa

Ulloa recalled Respondent telling Dowling that she wanted to speak with him. Shortly thereafter, Ulloa went inside the command. Because the back door was open, he was able at one point to see Respondent pointing at Dowling and talking in a way that appeared discourteous or confrontational. He described Respondent's appearance: "She was right on top of [Dowling], very close to him, pointing at him with her finger. She

seemed aggravated. She was not happy about something.” Her face was inches from his face. Ulloa could not hear what Respondent was saying. After Dowling entered the building, he informed Ulloa that Respondent had in fact been disrespectful and that he (Dowling) had given her an order to stand by. Ulloa went to the back door and saw Respondent walking away.

Police Officer Elizabeth Acevedo

Acevedo relieved Respondent as TSO on May 4, 2012. She described the conversation that she had with Respondent about Huntley on that day. She recalled that Respondent “said something with regard to the (ringing) phone that the sergeant had brought to her attention. She was giving me a heads-up so that I could do my job without calling undue attention to myself.” Respondent did not say anything negative about Huntley. The entire conversation between Respondent and Acevedo lasted about 30 seconds.

Respondent

Respondent testified that she was assisting a civilian complainant at the TS by looking for a locksmith on her cell phone’s internet. When Huntley told her the TS phone was ringing, she said, “I know,” and picked up the telephone. When the call ended, Huntley asked to speak with her at the rear of the station house. There, Huntley told her that she should have answered the ringing phone faster. Respondent apologized and said it would not happen again. At no point did Respondent charge at Huntley or put her hands near Huntley’s face. Respondent asserted that although she tends to speak with

her hands, she stayed two to three feet away from Huntley during their conversation.

Their entire exchange lasted less than two minutes.

When Acevedo came to relieve Respondent as TSO, Respondent told Acevedo that she had been reprimanded by Huntley for not answering a ringing telephone faster. Respondent warned Acevedo that she had to pick up the phone quickly when it rang. They spoke in English and their conversation lasted only a few minutes. During their conversation, Respondent saw that Dowling was standing ten to 12 feet away. She did not know Dowling prior to this date. Respondent then went upstairs to change. As she was entering the locker room, Huntley asked her if she had been talking negatively about her. Respondent replied that she had not been talking negatively about her and she told Huntley about her conversation with Acevedo.

Respondent signed out end of tour. She then saw Dowling at the back door of the precinct having a conversation with Ulloa. She waited patiently until Dowling had finished his conversation with Ulloa. When Ulloa came inside, Respondent approached Dowling and asked him if he had told Huntley that she had complained about Huntley. When Dowling told Respondent that he did not have to answer her question, she told Dowling, "Why would you go to Sergeant Huntley and tell her that I was talking negative when she and I already squashed what had happened earlier Why would you go and tell her that I was talking negative about her when that was not true. Who does that? Little girls do that." She testified that she said this to Dowling in her normal tone of voice, which tends to be loud. Dowling then entered the command without saying anything further and Respondent left for the day. At no point did Dowling tell

Respondent to stand by. Respondent was not discourteous to Dowling and she did not place her hand close to Dowling's face.

On cross-examination, Respondent denied that she had uttered the word "bitch" during her conversation with Dowling and she denied that she had pointed a finger at his face and she asserted that she would have stood by had she received an instruction to do so. She confirmed that she had no prior interactions with Dowling. Respondent conceded that she told Dowling not to "stir the pot."

FINDINGS AND ANALYSIS

Case No. 2010-3335

Specification No. 1

It is charged that Respondent was discourteous to Assaidi on October 2, 2010 in that she "used profanity toward" him. It is not disputed that Respondent approached Assaidi on October 2, 2010 and asked him who had made the decision to change her assignment to a foot post. Assaidi testified that when he refused to answer Respondent's question about who had post-changed her to a foot post, Respondent told him, "Fuck you, fuck you, you piece of shit!"

At this trial, Respondent adamantly denied that she had used any profanity in addressing Assaidi. However, Respondent's denial must be examined in light of the fact that at her November 23, 2010 official Department interview when she was asked, "Were you using profanity at all?" Respondent answered, "I don't recall." Since this interview was conducted less than two months after Respondent's encounter with Assaidi on October 2, 2010, she should have been able to recall whether or not she used profanity.

Thus, I can only conclude that her claim at this interview that she truly could not recall whether or not she had used profanity, during a tense encounter with a supervisor that should have been a memorable event, was disingenuous.

Moreover, Assaidi's claim that Respondent used the word "fuck" in berating him is consistent with Cohen's testimony (discussed in detail under Specification Nos. 2 and 3 below) that Respondent told him that Assaidi was a "fucking" idiot who did not know "what the fuck he was doing."

Respondent's retaliation claim against Assaidi

Respondent testified that on each of the dozen or so tours when she was assigned as Assaidi's driver he sexually harassed her by asking her personal questions about her love life, by making inappropriate comments about her body, and by asking her to go out with him. Respondent asserted at this trial that Assaidi had changed her assignment to a foot post on October 2, 2010 solely to punish her for having rejected his sexual advances because on the last occasion that she was assigned to drive Assaidi she told him that she was not interested in him and that she was sick of his comments.

However, Respondent conceded that she did not exercise her right to file an EEO complaint against Assaidi for sexual harassment during the time period when the harassment was taking place nor did she file an EEO complaint during the two to three month period between the final time she drove Assaidi and October 2, 2010. Rather, Respondent testified that she filed her EEO complaint against Assaidi on October 4, 2010. The fact that Respondent filed an EEO complaint for sexual harassment against Assaidi for the first time two days after Assaidi reported to the CO that Respondent had

been discourteous to him by cursing at him, raises suspicion about the timing of Respondent's EEO filing.

Although Bove's testimony that Assaidi had also made inappropriate comments to her may provide some support for Respondent's sexual harassment claim, OEEO has exclusive jurisdiction to conduct an investigation of all sexual harassment complaints and determine, upon approval of the Police Commissioner, whether a claim will result in a disciplinary charge.² Thus, Respondent's claim that Assaidi sexually harassed her is an allegation for OEEO, not this tribunal, to investigate and determine.

With regard to this disciplinary trial, I reject Respondent's claim that Assaidi's allegation that she cursed at him constituted a personal act of retaliation against her because her claim lacks support. Bove did not claim that Assaidi had retaliated against her. Most significantly, Respondent's claim that the reason that Assaidi changed her assignment to a foot post was solely to punish her for having rejected his sexual advances, was not supported by her partner. Archie testified that Assaidi told both of them on October 1, 2010 that because they had not issued any summonses or engaged in any other patrol activity that day, they would both be assigned to foot posts on October 2, 2010.

Conclusion

As to this disciplinary charge that Respondent was discourteous to Assaidi on October 2, 2010 in that she directed profanity at him, if Respondent wanted to protest her assignment to a foot post as an unjust action because her lack of activity the previous day was the result of being assigned to a funeral detail for all but two hours of her tour, she

² See Patrol Guide Procedure No. 205-36.

had the right to seek review and redress of her reassignment within the precinct command structure. As a uniformed member of this paramilitary Department, what Respondent did not have the right to do was to protest this post-change by addressing Assaidi, a supervisor, in a discourteous, profane manner.

As a result, Respondent is found Guilty of Specification No. 1.

Specification Nos. 2 and 3

It is charged that Respondent was discourteous to Cohen on October 17, 2010 in that, after expressing her discontent to Cohen regarding his checking on her while she was on her post, she threatened to file an EEO complaint against him; and that she also engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by making a disparaging remark about Assaidi to Cohen.

Respondent corroborated Cohen's testimony that she told him that she had filed an EEO complaint against Assaidi (which is the subject of Specification No. 4); that she asked Cohen "Are you jumping on his (Assaidi's) bandwagon?" and that she told him that she would file an EEO complaint against him if she felt he was harassing her.

I credit Cohen's testimony that Respondent made disparaging remarks about Assaidi by calling him a "fucking" idiot who did not know "what the fuck he was doing." Cohen's testimony has the ring of truth because he did not claim that Respondent had directed any profanity at him personally. Rather, he testified that the only profane disparaging remarks Respondent uttered related to Assaidi.

At this trial, Respondent asserted that she was certain that she had not used any profanity during her conversation with Cohen. However, at her November 23, 2010

official Department interview when she was asked, "Were you using profanity at all?" Respondent answered, "I don't recall." Since this interview was conducted only a little over a month after Respondent's conversation with Cohen on October 17, 2010, I find that her claim that she could not recall whether she had used profanity is not credible.

Respondent's retaliation claim against Cohen

Although Respondent testified that Cohen has never sexually harassed her, she, nonetheless, asserted that Cohen's allegation that she had made a profane disparaging remark to him about Assaidi on October 17, 2010 constituted part of a campaign of retaliation by Cohen. However, when Respondent was questioned about why Cohen would retaliate against her she offered only the assertion that Cohen and Assaidi are friends and speculative testimony that, because in her opinion OEE0's confidentiality procedures are routinely violated, Cohen would have known about her EEO complaint against Assaidi. Respondent's assertion that Cohen's action of telling her immediate supervisor, Amico, that she had not been on her post on October 16, 2010, constituted part of a campaign of retaliation against her by Cohen has no support in the record.

Conclusion

I reject Respondent's claim that Cohen's allegation that she made a disparaging remark about Assaidi to him should not be credited because Cohen was engaged in a campaign of retaliation against her.

Therefore, Respondent is found Guilty of Specification Nos. 2 and 3.

Specification No. 4

Since Respondent admitted that she violated OEEO confidentiality rules by telling Cohen that she had filed an EEO complaint against Assaidi, Respondent, having pleaded guilty, is found Guilty of Specification No. 4.

Case No. 2012-7409

It is charged that Respondent was discourteous to Dowling on May 4, 2012, in that she stated, in sum and substance, "If you did tell her that is a bitch move" and that she argued with Dowling while pointing her finger in his face and that she failed to comply with his order to stand by.

The record establishes that the following chronology took place on May 4, 2012: After Huntley ordered Respondent to answer the TSO telephone, an upset Respondent aggressively approached Huntley at her desk; that Respondent and Huntley went outside to discuss the matter and Respondent apologized to Huntley; that Huntley then told Dowling about her interaction with Respondent; that about ten minutes later Dowling overheard Respondent complaining to Acevedo about Huntley; that Dowling then telephoned Huntley and told her that the dispute was not resolved because he had just heard Respondent complaining about her; that Huntley then confronted Respondent and told her that someone had reported to her that Respondent was complaining about her; and, finally, that Respondent then approached Dowling in back of the precinct and, after Dowling had finished his conversation with Ulloa, asked him if he had spoken to Huntley about her. It is this conversation between Respondent and Dowling that is the subject of this charge.

Although Respondent asserted that she was not discourteous to Dowling during this conversation, she admitted that after he refused to answer her question about whether he had spoken to Huntley about her, she told Dowling, that what he had done was “what little girls do,” and that there was no need for him to “stir the pot.” Although Respondent denied that she had uttered the word “bitch,” or pointed her finger in his face, or failed to comply with an order to stand by, I find her guilty because I credit Dowling’s testimony.

Respondent corroborated Dowling’s claim that when she approached him on May 4, 2012, it was the first interaction they had ever had. Thus, I find that Dowling had no motive to falsely assert that Respondent told him, “That’s a bitch move” and “that’s what bitches do,” that she was pointing her finger upwards toward his face and that she failed to comply with his order to stand by. Dowling’s credibility is also enhanced by the fact that he candidly confirmed that at the point when Respondent approached him he was speaking to Ulloa and that she stepped away and waited quietly to speak to him for about two minutes until he had finished his conversation with Ulloa.

Moreover, Dowling’s claim that Respondent pointed her finger in his face was corroborated by Ulloa who testified that he saw an upset and aggravated Respondent pointing her finger at Dowling and talking to him with her face very close to his face. The believability of Ulloa’s claim is enhanced by the fact that he candidly admitted that because he was inside the precinct looking out of an open door, he could not hear what Respondent said to Dowling.

Based on the above, Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 18, 1996. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Assistant Department Advocate (the Advocate) recommended that Respondent's penalty consist of "separation from the Department." The Advocate did not cite any previous disciplinary decisions to support this penalty recommendation.

In *Case Nos. 2011-5515, 2011-5753, 2012-7687 and 2013- 9487* (Apr. 8, 2014), a penalty consisting of the forfeiture of 62 suspension days and one year on dismissal probation was imposed on a police officer who was found guilty of uttering obscenities toward a superior during a face-to-face encounter and other serious misconduct including deliberately filing false paperwork and lying about being sick.

In *Case No. 2012-7794* (Oct. 30, 2014), the Police Commissioner imposed a penalty consisting of the forfeiture of 30 vacation days and one year on dismissal probation on a ten-year police officer who was found guilty of being discourteous to a supervisor on four occasions and failing to report to the desk officer when leaving the station house.

Most recently, in *Case No. 2014-11097* (Dec. 23, 2014), the Police Commissioner imposed a penalty of the forfeiture of 30 suspension days and dismissal probation on a three-year officer for failing to comply with a lieutenant's order to arrest a man sleeping

on a subway train, discourteously telling the lieutenant in a loud voice that the order was unlawful, and unnecessarily requesting the services of the Emergency Medical Services.

In fashioning a penalty recommendation here, I have also taken into consideration Respondent's performance evaluations as well as Respondent's post-trial submission of medical documents and a letter from the [REDACTED]

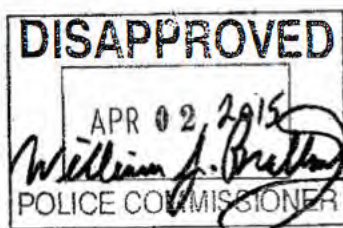
which support her claim that she suffers from [REDACTED] She was also diagnosed [REDACTED]

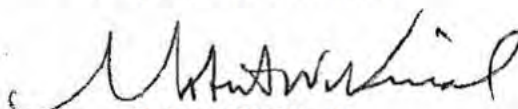
[REDACTED] Finally, I have taken into consideration that Respondent's previous formal disciplinary adjudication involved misconduct committed 12 years ago.

Therefore, it is recommended that Respondent be DISMISSED from the New York City Police Department; however, this penalty of dismissal will be held in abeyance pursuant to Section 14-115(d) of the NYC Administrative Code for a period of one year, during which time Respondent will remain on the force at the Police Commissioner's discretion and may be terminated at any time without a further hearing.

Regarding Disciplinary Case No. 2012-7409, Respondent was suspended without pay for 31 days from May 4, 2012 until June 3, 2012, at which time she was then placed on suspended with pay status. It is further recommended that Respondent forfeit the 31 days she has already served on suspension without pay.

Respectfully submitted,




Robert W. Vinal
Assistant Deputy Commissioner -- Trials

POLICE DEPARTMENT
CITY OF NEW YORK

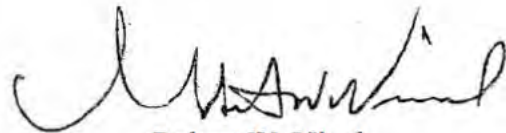
From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MARIBEL CORTES
TAX REGISTRY NO. 917467
DISCIPLINARY CASE NOS. 2010-3335 & 2012-7409

Respondent received an overall rating of 3.0 on her 2013 evaluation, 3.0 on her 2012 evaluation, and 3.0 on her 2011 evaluation. She has no medals. [REDACTED]
[REDACTED]
[REDACTED]

Respondent has a prior formal disciplinary record. In 2004, she forfeited five vacation days as a penalty after she pleaded guilty to harassing a person by telephoning the person and threatening the person.

Respondent was placed on Level 2 Discipline Monitoring on Feb. 22, 2011, which is continuing.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials